

UNITED STATES DISTRICT COURT  
SOUTHERN DISTRICT OF NEW YORK

-----X  
CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ and  
BERNARD HAYES,

Plaintiffs,

-against-

**COMPLAINT**

**JURY TRIAL DEMANDED**

**ECF CASE**

THE CITY OF NEW YORK, DETECTIVE VICTOR COX,  
Shield No. 7797, Individually and in his Official Capacity,  
and P.O.s "JOHN DOE" #1-10, Individually and in their  
Official Capacities (the name "John Doe" being fictitious, as  
the true names are presently unknown),

Defendants.

-----X  
Plaintiffs, CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ and BERNARD  
HAYES, by their attorney, Jon L. Norinsberg, Esq., complaining of the defendants, respectfully  
alleges as follows:

**PRELIMINARY STATEMENT**

1. Plaintiffs bring this action for compensatory damages, punitive damages  
and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of their civil  
rights, as said rights are secured by said statutes and the Constitutions of the State of New York  
and the United States.

**JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988,  
and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

**VENUE**

4. Venue is properly laid in the Southern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

**PARTIES**

5. Plaintiffs were at all relevant times residents of the City and State of New York.

6. Plaintiff CLIFFORD PARKER was the owner and operator of CSI PI INVESTIGATION ("CSI") a duly licensed corporation in the State of New York.

7. CSI was a bail bondsmen service, as well as a private investigation service.

8. Plaintiffs LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES were employees of CSI.

9. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

11. At all times hereinafter mentioned, the individually named defendants, Detective VICTOR COX (DET. COX) and P.O.s "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

12. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant City of New York.

14. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant City of New York.

### **FACTS**

15. On August 27, 2013, Mr. Joseph Lucia contracted with CSI to follow his wife, Carmen Lucia, whom he suspected was having an affair.

16. The retainer agreement between Mr. Lucia and CSI stipulated that the investigation was to conclude on September 15, 2013.

17. Plaintiffs thereafter began an in-depth surveillance of Carmen Lucia.

### **CSI Catches Carmen Lucia with Her Lover, Christopher Rodriguez.**

18. On September 6, 2013, plaintiffs CLIFFORD PARKER and GABRIEL CRUZ followed Carmen Lucia to a parking lot on Randall's Island.

19. Carmen Lucia proceeded to park her car in the lot on Randall's island, and got into a white Honda with a Mr. Christopher Rodriguez, and then drove off.

20. Thereafter, plaintiff CLIFFORD PARKER called plaintiffs LUIS PELAEZ and BERNARD HAYES for backup.

21. Plaintiffs LUIS PELAEZ and BERNARD HAYES thereafter arrived on the scene to help with surveillance, setting up cameras at different angles.

22. At approximately 12:30 P.M., the white Honda arrived back at the Randall's Island parking lot.

23. Plaintiffs began to immediately take pictures of Carmen Lucia and Christopher Rodriguez from multiple angles.

24. Mr. Rodriguez got out of the car and approached plaintiff BERNARD HAYES, asking who he was.

25. Plaintiff BERNARD HAYES explained to Mr. Rodriguez that he was a private investigator, as were all the other plaintiffs, showed him his investigator license, and informed him that he was retained to investigate Carmen Lucia.

26. Mr. Rodriguez responded by threatening plaintiff BERNARD HAYES, claiming that he "had people in the NYPD" and told him to "mind his business."

27. Mr. Rodriguez thereafter placed a call to 911.

28. As Mr. Rodriguez was on the phone, a police car drove by the vicinity, and plaintiff LUIS PELAEZ waived the police car down.

29. The police car responded to plaintiff LUIS PELAEZ, and P.O. Colon got out of the vehicle.

30. P.O. Colon thereafter asked about what was going on, and plaintiffs proceeded to tell the officer what was happening.

31. P.O. Colon instructed Mr. Rodriguez to hang up the phone with 911.

32. Mr. Rodriguez complied with the officer's request.

33. Mr. Rodriguez then went aside, and placed another call of an unknown nature.

34. After inspecting plaintiffs' licenses, she instructed everyone at the scene to leave, and the incident ended without a single arrest.

35. While the parties were disbursing, Mr. Rodriguez again yelled “I’ve got people in the NYPD, you’ll see.”

**Christopher Rodriguez Makes Patently False Statements To The New York Police Department, Raising Immediate Doubts As To His Veracity.**

36. After the encounter with plaintiffs, Christopher Rodriguez contacted the NYPD and made false statements to defendant DET. COX about the Randall’s Island incident.

37. Mr. Rodriguez told defendant DET. COX that the plaintiffs made themselves out as police officers, dressed as police officers, stated that they were in fact police officers, and actually took Mr. Rodriguez’s license and registration, without returning said documents.

38. Defendant DET. COX had reasons to doubt the veracity of Mr. Rodriguez’s story as implausible from the outset.

39. Firstly, defendant DET. COX learned that all plaintiffs are duly licensed private investigators and/or bail bondsmen.

40. In fact, during the 911 call, Mr. Rodriguez even referred to plaintiffs as “private investigators.”

41. PO Colon, who was on the scene of the Randall’s Island Incident, knew for a fact that plaintiffs had not dressed as, nor made themselves out to be, police officers, and in fact, were in their private investigator/bail bondsmen attire.

42. Defendants had this exculpatory evidence proving that plaintiffs’ committed no crimes.

**Plaintiff Bernard Hayes is Arrested Three Weeks After the Randall’s Island Incident.**

43. Three weeks later, on or about September 27, 2013, plaintiff BERNARD HAYES was at the office at his second job as a licensed fire extinguisher inspector, located at 291 Frost Street, in the County of Kings, in the City and State of New York.

44. As he left his office and walked towards his truck, he was approached by defendant DET. COX, and defendants “JOHN DOE” 1-10.

45. Defendant police officers immediately told plaintiff BERNARD HAYES to place his hands behind his back, and proceeded to handcuff him.

46. Defendant police officers did not inform plaintiff BERNARD HAYES of what he was being arrested for.

47. Plaintiff BERNARD HAYES was then taken to the police precinct.

48. Plaintiff BERNARD HAYES then asked defendant police officers what they were charging him for, and was shown a video of the Randall’s Island incident.

49. Defendant DET. COX asked plaintiff BERNARD HAYES if he appeared in the video, to which plaintiff BERNARD HAYES replied in the affirmative.

50. At the police precinct, plaintiff BERNARD HAYES was informed that he was being arrested for, *inter alia*, Unlawful imprisonment in the Second Degree, and Criminal Impersonation in the Second Degree.

51. At no time did plaintiff BERNARD HAYES imprison anyone nor impersonate anyone.

52. Plaintiff BERNARD HAYES explained to defendant DET. COX that plaintiffs’ were duly licensed private investigators and that Mr. Rodriguez was lying about the entire incident.

53. Plaintiff BERNARD HAYES also explained to defendant DET. COX that PO Colon was on the scene for the Randall’s Island incident and would corroborate his story, to no avail.

54. Plaintiff BERNARD HAYES spent the next thirteen (13) hours in custody before

being released on his own recognizance at his arraignment.

**Plaintiffs Clifford Parker, Luis Pelaez, and Gabriel Cruz Are Arrested By Defendant Det. Cox Three Weeks After Plaintiff Bernard Hayes.**

55. Three weeks after the arrest of plaintiff BERNARD HAYES, plaintiff CLIFFORD PARKER received a phone call from defendant DET. COX.

56. During this telephone conversation, defendant DET. COX informed plaintiff CLIFFORD PARKER that he was also to be arrested, along with Plaintiffs LUIS PELAEZ and GABRIEL CRUZ, for impersonating police officers and for unlawful imprisonment.

57. Defendant DET. COX demanded that plaintiff CLIFFORD PARKER make arrangements to turn himself and the remaining plaintiffs into police custody, ignoring all the exculpatory evidence that had been provided by plaintiff BERNARD HAYES.

58. Plaintiff CLIFFORD PARKER thereafter retained the services of Paul London, Esq., a criminal defense attorney, and paid him \$3,000.00.

59. On November 13, 2013 plaintiffs CLIFFORD PARKER, LUIS PELAEZ, and GABRIEL CRUZ, surrendered to defendant DET. COX.

60. Plaintiffs CLIFFORD PARKER, LUIS PELAEZ, and GABRIEL CRUZ spent approximately five (5) hours in custody before being released with Desk Appearance Tickets.

61. All four plaintiffs were required make six (6) court appearances before all charges were dismissed, on September 22, 2014, by motion of the New York County District Attorney's Office.

**The Harm Done To Plaintiffs.**

62. Due to the unlawful conduct of defendant police officers, plaintiff BERNARD HAYES was unable to work as either a private investigator/bail bondsmen, nor as a fire extinguisher inspector during the pendency of the criminal charges.

63. In the year the criminal charges were pending against plaintiff BERNARD HAYES, he suffered substantial economic losses.

64. Due to the unlawful conduct of defendant police officers, plaintiff CLIFFORD PARKER's licenses -- for both private investigation and bail bondsmen -- were not renewed.

65. In the year the criminal charges were pending against plaintiff CLIFFORD PARKER, he suffered substantial economic losses.

66. Due to the unlawful conduct of defendant police officers, plaintiff LUIS PELAEZ's licenses for both private investigation and bail bondsmen were not renewed.

67. Further, plaintiff LUIS PELAEZ's handgun license was revoked.

68. In the year the criminal charges were pending against plaintiff LUIS PELAEZ, he suffered substantial economic losses.

69. Due to the unlawful conduct of defendant police officers, plaintiff GABRIEL CRUZ's licenses for both private investigation and bail bondsmen were not renewed.

70. In the year the criminal charges were pending against plaintiff GABRIEL CRUZ, he suffered substantial economic losses.

71. As a result of the foregoing, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, lost earnings, embarrassment and humiliation and deprivation of their constitutional rights.

**FIRST CLAIM FOR RELIEF**  
**DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

72. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "71" with the same force and effect as if fully set forth herein.



73. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

74. All of the aforementioned acts deprived plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

75. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

76. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF**  
**FALSE ARREST UNDER 42 U.S.C. § 1983**

78. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "77" with the same force and effect as if fully set forth herein.

79. As a result of defendants' aforementioned conduct, deprived plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES were subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely

imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without any probable cause, privilege or consent.

80. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, and they were put in fear for their safety, were humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF**  
**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

81. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "80" with the same force and effect as if fully set forth herein.

82. Defendants misrepresented and falsified evidence before the District Attorney.

83. Defendants did not make a complete and full statement of facts to the District Attorney.

84. Defendants withheld exculpatory evidence from the District Attorney.

85. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES.

86. Defendants lacked probable cause to initiate criminal proceedings against plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES.

87. Defendants acted with malice in initiating criminal proceedings against plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES.

88. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES.

89. Defendants lacked probable cause to continue criminal proceedings against plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES.

90. Defendants acted with malice in continuing criminal proceedings against plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES.

91. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

92. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiffs' favor when all charges against them were dismissed.

93. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, and they were put in fear for their safety, were humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**FOURTH CLAIM FOR RELIEF  
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL  
UNDER 42 U.S.C. § 1983**

94. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "93" as if the same were more fully set forth at length herein.

95. Defendants created false evidence against plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES.

96. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office.

97. In creating false evidence against plaintiffs, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated plaintiffs' constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

98. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, and they were put in fear for their safety, were humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**FIFTH CLAIM FOR RELIEF**  
**MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983**

99. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "98" with the same force and effect as if fully set forth herein.

100. The aforementioned individual defendants issued legal process to place plaintiffs under arrest.

101. The aforementioned individual defendants arrest plaintiffs in order to obtain a collateral objective outside the legitimate ends of the legal process.

102. The aforementioned individual defendants acted with intent to do harm to plaintiffs, without excuse or justification.

103. As a result of the foregoing, plaintiffs sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

**SIXTH CLAIM FOR RELIEF**  
**MUNICIPAL LIABILITY**

104. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "103" as if the same were more fully set forth at length herein.

105. Defendants arrested and incarcerated plaintiffs in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiffs' liberty, well-being, safety, livelihood and constitutional rights.

106. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

107. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

108. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiffs.

109. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

110. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

111. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs were incarcerated unlawfully.

112. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiffs.

113. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiffs' constitutional rights.

114. All of the foregoing acts by defendants deprived plaintiffs of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have cruel and unusual punishment imposed upon them; and
- E. To receive equal protection under the law.

**FIRST CLAIM FOR RELIEF  
UNDER N.Y. STATE LAW: FALSE ARREST**

115. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "114" with the same force and effect as if fully set forth herein.

116. Plaintiffs have complied with all the conditions precedent of the bringing of this action, and have complied with all provisions of the Charter of the City of New York, and the plaintiffs have, prior to the bringing of this action and within ninety days after the injuries hereinafter described were received, duly served notice upon the Corporation Counsel and the Comptroller for the City of New York of their intention to sue upon the claim set forth. More than thirty days have elapsed since the presentation of the Notice of Claim, and that the said claim remains unadjusted and the said Comptroller has failed and/or refused to make any adjustment thereof. Plaintiffs have appeared for a hearing held pursuant to the General Municipal Law

Section 50-h. The instant action is being filed within one year and ninety days of the date in which plaintiffs' claims accrued.

117. Defendant police officers arrested plaintiffs in the absence of probable cause and without a warrant.

118. As a result of the aforesaid conduct by defendants, plaintiffs were subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

119. The aforesaid actions by the defendants constituted a deprivation of the plaintiffs' rights.

**FOURTH CLAIM FOR RELIEF**  
**UNDER N.Y. STATE LAW: FALSE IMPRISONMENT**

120. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "119" with the same force and effect as if fully set forth herein.

121. As a result of the foregoing, plaintiffs were falsely imprisoned, their liberty was restricted for an extended period of time, they were put in fear for their safety, were humiliated and subjected to handcuffing, and other physical restraints.

122. Plaintiffs were conscious of said confinement and did not consent to same.

123. The confinement of plaintiffs was without probable cause and was not otherwise privileged.

124. As a result of the aforementioned conduct, plaintiffs have suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

125. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “124” with the same force and effect as if fully set forth herein.

126. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

127. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

128. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

129. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiffs.

130. As a result of the aforementioned conduct, plaintiffs suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

131. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “130” with the same force and effect as if fully set forth herein.



132. Defendant the City of New York owed a duty to the public at large, including but not limited to plaintiffs, to exercise reasonable care in the selection, hiring and retention of all of its employees, and in particular, those employees with the job responsibility of dealing with the public at large.

133. Defendant The City of New York failed to use reasonable care when it hired defendants polices officers DET. COX and “John Doe” #1 - 10.

134. Defendant The City of New York failed to make reasonable inquiries into the background of defendant police officers DET. COX and “John Doe” #1 - 10.

135. Had defendant The City of New York used reasonable care in inquiring into the background of defendant DET. COX and “John Doe” #1 - 10, it would have learned that they were patently unqualified to serve as police officers in the New York City Police Department.

136. As a result of the foregoing, defendant City of New York breached its duty to use reasonable care in the selection and hiring of all of its employees.

137. As a result of defendant City of New York’s negligence in hiring defendant police officers “John Doe” # 1 - 10, plaintiffs were subjected to excessive force and to a false arrest by defendant police officers DET. COX and “John Doe” #1 - 10.

138. Upon information and belief, this was not the first time that defendant police officers DET. COX and “John Doe” #1 – 10 had made false arrests against citizens of the City of New York.

139. Defendant City of New York knew, or in the exercise of reasonable care, should have known, that defendants police officers DET. COX and “John Doe” #1 - 10 had a propensity for making false arrests against citizens of the City of New York.

140. Defendant The City of New York knew, or in the exercise of reasonable care, should have known, that defendant police officers DET. COX and “John Doe” #1 – 10 had a propensity for engaging in grossly improper, inappropriate and unlawful conduct towards citizens of the City of New York, and then concealing such misconduct by making false accusations against such citizens.

141. Notwithstanding The City of New York’s knowledge of the propensities of defendant police officers DET. COX and “John Doe” #1 - 10, defendant the City of New York retained defendant police officers DET. COX and “John Doe” #1 – 10 as employees, and allowed them to continue to deal directly with the members of the public, including but not limited to, plaintiffs

142. In choosing to hire, and then retain, defendant police officers DET. COX and “John Doe” #1 - 10, defendant City of New York breached its duty to the public at large, and to plaintiffs in particular, to use reasonable care in the selection and retention of its employees.

143. Defendant City of New York was further negligent in failing to provide adequate training regarding the use of force against civilians, and in failing to adequately supervise defendants in the performance of their occupational duties.

144. As a result of the foregoing, plaintiffs are entitled to compensatory damages in the sum of one million dollars (\$1,000,000.00) and is further entitled to punitive damage against the individual defendants in the sum of one million dollars (\$1,000,000.00).

**WHEREFORE**, plaintiffs CLIFFORD PARKER, LUIS PELAEZ, GABRIEL CRUZ, and BERNARD HAYES each demand judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages, one million dollars (\$1,000,000.00) in punitive damages, plus attorney's fees, costs, and disbursements of this action.

Dated: New York, New York  
August 3, 2015

BY:                     /s/                      
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